Dpsc Limited vs West Bengal Electricity Regulatory ... on 8 August, 2012

IA No.256 of 2012 in
DFR No.973 of 2012

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

IA No.256 of 2012 in
DFR No.973 of 2012

Dated: 8th August , 2012

Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

In the matter of:

DPSC Limited ....Applicant
Plot X - 1, 2 & 3, Block EP, Sector V
Salt Lake City
Kolkata - 700 091

Vs.

West Bengal Electricity Regulatory Commission ... Respondent
FD - 415 A, Poura Bhawan
3rd Floor Sector - III, Bidhannagar
Kolkata - 700 106

Counsel for the Applicant(s) : Mr. Buddy Ranganadhan
Mr. Atul Shanker Mathur
Ms. Shruti Verma
Mr. Debnath Ghosh
Mr. Shaunak Mitra
Ms. Abhiswar Bairagi

ORDER

This is the application in IA No.256 of 2012 filed by DPSC Limited, a generation and distribution utility for condonation of delay of 1558 days in filing Appeal against the order passed by the West Bengal Electricity Regulatory Commission on 31.1.2008, deciding the Fuel and Power Purchase Cost Adjustment (FPPCA) for the years 2004-05 to 2006-07.

2. The Annual Performance Review of the Appellant/Applicant for the FY 2006-07 was decided by the State Commission by its order 15.9.2008, adopting the FPPCA decided in its order dated 31.1.2008. Aggrieved by the order dated 15.9.2008 passed by the State Commission, the Appellant/Applicant preferred an Appeal being no. 67 of 2009 before this Tribunal. This Appeal was allowed in part by the Tribunal by its judgment dated 6.9.2012. However, the issue regarding the Power Purchase Cost for the FY 2006-07 was decided IA No.256 of 2012 in by the Tribunal against the Appellant on the ground that the FPPCA order dated 31.1.2008 had not been challenged in the Appeal and as such the same has attained finality. Accordingly, the Appellant/Applicant has now filed the Appeal against order dated 31.1.2008.

3. The Appellant/Applicant has given the following explanation for delay of 1558 days in filing the Appeal.

> i) There was change in management of the Appellant's company pursuant to the order passed by the High Court dated 19.1.2010 and subsequent merger with the present holding company on 1.10.2010.

Thereafter, it transpired that the Review Application have been erroneously filed by the erstwhile management of the Appellant/Applicant in relation to the orders passed in APR instead of challenging the FPPCA orders dated 31.1.2008.

IA No.256 of 2012 in

ii) After the disposal of the Appeal no. 67 of 2009 by this Tribunal on 6.9.2011, it was decided to file the instant Appeal against the FPPCA order dated 31.1.2008. However, during the period April, 2010 to November, 2011 the persons dealing with the regulatory affairs left the Appellant/Applicant's company and the new persons took time to peruse the records and filed the Appeal.

4. We have heard the Learned Counsel for the Appellant/Applicant, who argued at length giving the explanation and pointing out the merits of the matter.

5. We are only concerned with question as to whether sufficient cause has been shown to condone this inordinate delay. On going through the application, we find that there is no proper explanation for this huge delay. According to the Appellant only after change in management of the company, it

was realized in October, IA No.256 of 2012 in 2010 the order dated 31.1.2008 has to be challenged, even then the Appeal was not filed. On the other hand, the Applicant waited for final disposal of Appeal no.67 of 2009 by the Tribunal on 6.9.2011. This Tribunal specially held in the said judgment that since Appeal has not been filed as against the order dated 31.1.2008, it has attained finality. Despite this the Applicant had not chosen to file the Appeal immediately. The Applicant filed this Appeal only on 18.5.2012 i.e. after about 8 months. Admittedly, there is no proper explanation for this period i.e. between 6.9.2011, the date of disposal of the Appeal no. 67 of 2009 and, 18.5.2012, the date of filing this Appeal.

6. This would show that the Appellant/Applicant has not been vigilant in seeking the remedy. In fact, the Applicant has not been able to show sufficient cause by explaining the delay for a long period i.e. 1558 days.

IA No.256 of 2012 in

7. Accordingly, IA No. 256 of 2012 is dismissed.

Consequently, the Appeal is also rejected.

8. Pronounced in the open court on this 8th day of August, 2012.

```
( Rakesh Nath)                 (Justice M. Karpaga Vinayagam)
Technical Member                          Chairperson


   √
REPORTABLE/NON-REPORTABLE

mk
```